follow him, ſo that he may have at all times near unto him ſome that be learned in the laws.

THE juriſdiction of this court is very high and tranſcendent. It keeps all inferior juriſdictions within the bounds of their authority, and may either remove their proceedings to be determined here, or prohibit their progreſs below. It ſuperintends all civil corporations in the kingdom. It commands magiſtrates and others to do what their duty requires, in every caſe where there is no other ſpecific remedy. It protects the liberty of the ſubject, by ſpeedy and ſummary interpoſition. It takes cognizance both of criminal and civil cauſes; the former in what is called the crown-ſide or crown-office; the latter in the plea-ſide of the court. The juriſdiction of the crown-ſide it is not our preſent buſineſs to conſider: that will be more properly diſcuſſed in the enſuing volume. But on the plea-ſide, or civil branch, it hath an original juriſdiction and cognizance of all *treſpaſſes*, and other injuries, alleged to be committed *vi et armis:* which, being a breach of the peace, ſavour of a criminal nature, although the action is brought for a civil remedy; and for which the defendant ought in ſtrictneſs to pay a fine to the king, as well as damages to the injured party [u]. This court might likewiſe, upon the diviſion of the *aula regia*, have originally held plea of any other civil action whatſoever, (excepting actions real, which are now very ſeldom in uſe) provided the defendant was an officer of the court; or in the cuſtody of the marſhall, or priſon-keeper, of this court, for a breach of the peace or any other offence [w]. In proceſs of time, by a fiction, this court began to hold plea of all perſonal actions whatſoever, and has continued to do ſo for ages [x]: it being ſurmiſed that the defendant is arreſted for a ſuppoſed treſpaſs, which he never has in reality committed; and being thus in the cuſtody of the marſhall of this court, the plaintiff is at liberty to proceed againſt him for any other perſonal injury: which ſurmiſe, of being in the marſhall's cuſtody,

[u] Finch. L. 198.
[w] 4 Inſt. 71.
[x] *Ibid.* 72.

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the defendant is not at liberty to diſpute [y]. And theſe fictions of law, though at firſt they may ſtartle the ſtudent, he will find upon farther conſideration to be highly beneficial and uſeful: eſpecially as this maxim is ever invariably obſerved, that no fiction ſhall extend to work an injury; it's proper operation being to prevent a miſchief, or remedy an inconvenience, that might reſult from the general rule of law [z]. So true is it, that *in fictione juris ſemper ſubſiſtit aequitas* [a]. In the preſent caſe, it gives the ſuitor his choice of more than one tribunal, before which he may inſtitute his action; and prevents the circuity and delay of juſtice, by allowing that ſuit to be originally, and in the firſt inſtance, commenced in this court, which after a determination in another, might ultimately be brought before it on a writ of error.

FOR this court is likewiſe a court of appeal, into which may be removed by writ of error all determinations of the court of common pleas, and of all inferior courts of record in England: and to which a writ of error lies alſo from the court of king's bench in Ireland. Yet even this ſo high and honourable court is not the *dernier reſort* of the ſubject; for if he be not ſatisfied with any determination here, he may remove it by writ of error into the houſe of lords, or the court of exchequer chamber, as the caſe may happen, according to the nature of the ſuit, and the manner in which it has been proſecuted.

VII. THE court of exchequer is inferior in rank not only to the court of king's bench, but to the common pleas alſo: but I have choſen to conſider it in this order, on account of it's double capacity, as a court of law and a court of equity alſo. It is a very antient court of record, ſet up by William the conqueror [b],

[y] Thus too in the civil law: *contra fictionem non admittitur probatio: quid enim efficeret probatio veritatis, ubi fictio adverſus veritatem fingit? Nam fictio nihil aliud eſt, quam legis adverſus veritatem in re poſſibili ex juſta cauſa diſpoſitio. (Gothofred. in Ff. l.22. t.3.)*

[z] 3 Rep. 30. 2 Roll. Rep. 502.

[a] 11 Rep. 51. Co. Litt. 150.

[b] Lamb. *Archeion.* 24.

as a part of the *aula regia* [c], though regulated and reduced to it's preſent order by king Edward I [d]; and intended principally to order the revenues of the crown, and to recover the king's debts and duties [e]. It is called the exchequer, *ſcaccharium*, from the checqued cloth, reſembling a cheſs-board, which covers the table there; and on which, when certain of the king's accounts are made up, the ſums are marked and ſcored with counters. It conſiſts of two diviſions: the receipt of the exchequer, which manages the royal revenue, and with which theſe commentaries have no concern; and the court or judicial part of it, which is again ſubdivided into a court of equity, and a court of common law.

THE court of equity is held in the exchequer chamber before the lord treaſurer, the chancellor of the exchequer, the chief baron, and three *puiſnè* ones. Theſe Mr Selden conjectures [f] to have antiently been made out of ſuch as were barons of the kingdom, or parliamentary barons; and thence to have derived their name: which conjecture receives great ſtrength from Bracton's explanation of *magna charta*, c. 14. which directs that the earls and barons be amerced by their peers; that is, ſays he, by the barons of the exchequer [g]. The primary and original buſineſs of this court is to call the king's debtors to account by bill filed by the attorney general; and to recover any lands, tenements, or hereditaments, any goods, chattels, or other profits or benefits, belonging to the crown. So that by their original conſtitution the juriſdiction of the courts of common pleas, king's bench, and exchequer, was entirely ſeparate and diſtinct; the common pleas being intended to decide all controverſies between ſubject and ſubject; the king's bench to correct all crimes and miſdemeſnors that amount to a breach of the peace, the king being then plaintiff, as ſuch offences are in open derogation of the *jura regalia* of his crown; and the exchequer to adjuſt and recover his revenue, wherein the king alſo is plaintiff, as the withholding and non-

[c] Madox. Hiſt. Exch. 109.
[d] Spelm. *Guil. I. in cod. leg. vet. apud* Wilkins.
[e] 4 Inſt. 103 — 116.
[f] Tit. hon. 2. 5. 16.
[g] *l.* 3. *tr.* 2. *c.* 1. §. 3.

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